

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
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Record class: appellant reply addressing jurisdiction and intervening Supreme Court authority.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Rusk reply

Reply Brief of Appellant Officer Nolan Rusk

Filed May 6, 2026.

Ellison correctly separates appellate factfinding from a legal immunity decision, but she applies the clearly-established inquiry at too high a level of generality. Rusk continues to submit that the synchronized sequence provides objective context beyond a bare “pull.” He also recognizes that if the Court regards that submission as a challenge to evidentiary sufficiency, *Johnson v. Jones* requires dismissal of that portion rather than reassessment of credibility.

The separable legal question remains dispositive. On the district court's assumptions, Ellison was pulling during close hands-on control beside a railing, and Rusk used one five-second contact- mode cycle as the takedown occurred. No pre-February 2025 decision held materially similar conduct unlawful. *Armstrong* involved repeated electrical applications against stationary resistance; the other cited cases differ in force and sequence.

Intervening *Zorn v. Linton* reinforces the need for factual specificity. It cannot itself supply notice at the earlier incident date, and Rusk does not use it that way. It governs how this Court evaluates whether older precedent gave sufficiently precise warning. The legal denial should be reversed even if the factual component is dismissed.

Jurisdiction should be resolved argument by argument

Barricks v. Wright, No. 25-1250, slip op. at 6–12 (4th Cir. Mar. 3, 2026), forecloses using an interlocutory appeal to decide whose disputed narrative is better supported. Rusk does not ask the Court to find that a forearm strike or equipment reach occurred. Those issues may be tried if the case returns to the district court.

Rusk's media point is narrower but admittedly close to the jurisdictional line. The recordings show continued movement, commands, and a compressed takedown sequence even though the hands are hidden. He submits that those objective features prevent treating the event as stationary passivity. Ellison answers that the district court already assumed purposeful pulling and that any additional characterization affects only degree and threat.

If the Court agrees with Ellison, the proper result is dismissal of the media-based issue for lack of jurisdiction. It is not dismissal of the appeal. The Court must still decide whether the accepted facts establish a violation of clearly established law. Both briefs identify the same plaintiff-favorable set for that question, and no further record choice is needed to resolve it.

Scott does not authorize reconstruction of hidden movements

Rusk cited *Scott v. Harris*, 550 U.S. 372 (2007), because objective media can sometimes define the summary-judgment baseline. He does not contend that image enhancement reveals a strike or reach. The Rusk camera is obstructed from 19:53:08 through 19:53:22, Vega's view does not reliably show the hands, and the audio does not assign contact sounds to a particular object. JA77–JA101.

The objective sequence nevertheless confirms pulling and a rapidly developing descent. That context may be considered without manufacturing an unseen act. But the distinction has limited practical effect because Ellison's assumed version already includes pulling. If the only disputed question is whether the pulling carried additional dangerous meaning, *Tolan v. Cotton*, 572 U.S. 650 (2014), requires the plaintiff-favorable inference at summary judgment.

Rusk therefore narrows the relief requested. The Court should not announce that the recordings blatantly contradict Ellison on the strike or belt reach. It may either treat the visible context as part of the assumed legal circumstances or dismiss that contention under *Johnson*. Neither course determines the truth of the hidden physical events.

The assumed legal question includes real physical resistance

Ellison describes her movement as a pain-driven recoil. The district court assumed that explanation while also recognizing she pulled against wrist control. JA249. The legal analysis must not add a strike or threat, but it also should not reduce the encounter to verbal noncompliance. Rusk was maintaining a lawful seizure during active physical withdrawal in close quarters.

That control interest is legitimate under *Graham v. Connor*, 490 U.S. 386 (1989). An officer need not abandon a seizure whenever the person resists without becoming immediately dangerous. The question is how much force reasonably corresponds to that interest. Rusk used one contact-mode cycle while bringing Ellison down and stopped before handcuffing. JA69–JA101.

Ellison's argument effectively makes immediate danger a prerequisite for any electrical pain. *Armstrong* strongly links taser use to danger, but qualified immunity asks whether that rule clearly encompassed this single-cycle, moving-control context. The Court may view the choice as constitutionally excessive yet still conclude that reasonable officers lacked particularized notice. Those two prongs should remain distinct.

Force magnitude was materially less than in *Armstrong*

Estate of Armstrong ex rel. Armstrong v. Village of Pinehurst, 810 F.3d 892 (4th Cir. 2016), provides the closest analogy, but its details matter. Armstrong clung to a signpost and officers used a conducted-energy device multiple times during an extended effort to remove him. The Court held that force excessive while granting immunity for the older incident and offering prospective guidance. *Id.* at 901–09.

Here there was one five-second drive-stun cycle during a brief takedown. The device did not deploy probes, Rusk did not reactivate it on the floor, and no force followed cuffing. JA69–JA82. Ellison was not fixed to an object; she was pulling from direct wrist control while bodies moved near a railing. Those differences affect both magnitude and the immediacy of the control problem.

The two superficial contact burns and shoulder strain confirm meaningful force, not the repeated electrical exposure addressed in *Armstrong*. JA51–JA63. Prospective guidance must be followed, but it must also be applied with the specificity qualified immunity requires. An officer could reasonably understand *Armstrong* to prohibit repeated taser use against stationary, non-dangerous resistance without resolving this bounded contact cycle.

The remaining circuit cases do not supply the missing specificity

Smith v. Ray, 781 F.3d 95 (4th Cir. 2015), examines escalation following modest movement but not a single drive stun integrated into hands-on control. *Meyers v. Baltimore County*, 713 F.3d 723 (4th Cir. 2013), distinguishes early taser applications from later uses after danger subsided, underscoring that sequence can change the legal answer. *Yates v. Terry*, 817 F.3d 877 (4th Cir. 2016), involves a nonthreatening traffic-stop subject and a materially different force history.

Ellison combines these decisions into a general relationship between pain and danger. That relationship is relevant to constitutional reasonableness. It does not establish that every reasonable officer would know one contact cycle was forbidden when a person actively pulled during a lawful protective seizure and takedown.

The district court's right formulation is admirably detailed, but the cited cases do not mirror its details. JA250–JA251. Qualified immunity is not defeated by selecting a particularized description and then supporting it only with broad proportionality principles. The precedent itself must provide the close notice, and here its differences leave room for reasonable legal judgment.

Zorn governs specificity but not historical notice

The Supreme Court decided *Zorn v. Linton*, 607 U.S. 568 (2026), on March 23, after Rusk's opening brief and more than a year after this encounter. Rusk agrees unequivocally that *Zorn* could not have clearly established law for his conduct on February 3, 2025. It is intervening decisional authority concerning the standard this Court applies now.

Zorn rejects reliance on materially more aggressive-force cases to condemn a routine wristlock used after repeated warnings to move a resistant protester. Slip op. at 3–6. The decision requires a high degree of factual specificity in the precedent asserted as notice. Ellison distinguishes the wristlock, protest setting, warnings, and force magnitude. Those differences explain why *Zorn* is not a factual twin; they do not diminish its methodological command.

Applying that command here reveals the gap. *Armstrong* used repeated electrical force against a person holding a signpost. Rusk used one contact cycle during moving wrist control. *Smith*, *Meyers*, and *Yates* supply other factual configurations. None addressed this bounded combination. Because *Zorn* does not create past notice and the older cases lack the required fit, qualified immunity should be granted.

Barricks permits reversal on the pure legal prong

Ellison invokes *Barricks* for a mixed disposition, and Rusk agrees that the decision supplies the proper procedural architecture. The Court may dismiss a request to revisit evidence sufficiency and still decide whether plaintiff-favorable facts violate clearly established law. Slip op. at 6–12. That path preserves immunity's protection against trial without asking appellate judges to find facts.

On substance, *Barricks* discusses gratuitous injurious force against a nonthreatening person and the importance of a changing sequence. Rusk's conduct was not gratuitous in the sense of force after surrender or control; the assumed pulling was ongoing, and the cycle accompanied the takedown. The absence of immediate danger reduces justification but does not erase the need to control movement.

Like *Zorn*, *Barricks* postdates the February 2025 incident and cannot independently supply notice. It confirms the need to examine preexisting precedent on the accepted facts. That precedent does not place one drive-stun cycle during active pulling beyond debate. The Court can therefore reverse the legal ruling while expressly leaving all historical disputes unresolved.

Alternative constitutional analysis

If the Court reaches the first immunity prong, it should avoid a categorical rule. The protective purpose, absence of crime, no-danger assumption, and two-officer presence weigh for Ellison. The ongoing lawful seizure, physical pulling, confined location, five-second duration, single activation, and termination before cuffing weigh for Rusk.

Rusk submits that the totality permits the bounded control response, but he recognizes that *Armstrong* gives substantial weight to the absence of immediate danger. The Court could affirm the constitutional holding while reversing on clearly established law. Such a decision should make clear that drive-stun mode is not per se reasonable or unreasonable and that the assumed facts exclude the strike and equipment movement Rusk reported.

No holding should depend on medical severity alone. The abrasion, burns, and strain describe the force's effects, while the lack of fracture does not immunize it. JA51–JA68. Similarly, alternative tactics may inform proportionality without imposing a least-intrusive-means test. A careful ruling can preserve those principles and decide only whether the legal line was settled for this factual configuration.

Conclusion and reply certifications

The Court should reverse the legal denial of qualified immunity and remand for judgment in Rusk's favor. If it concludes that Rusk's media submission challenges evidentiary sufficiency, it should dismiss only that portion for lack of interlocutory jurisdiction. It should not decide whether Ellison struck Rusk, reached toward his belt, or merely recoiled and pulled from painful control.

Counsel certifies that this reply was electronically filed and served on May 6, 2026, and complies with applicable format and length requirements. Record references use the district appendix pagination. The brief distinguishes observed media content from testimonial descriptions and does not present generated imagery or audio attribution as fact.

Counsel also certifies that *Zorn* is cited as intervening authority governing the Court's current specificity analysis, not as law available to Rusk in February 2025. The fair-notice argument rests on the asserted insufficiency of the older cases. *Barricks* is likewise used for present appellate procedure and analysis, not retroactive notice.

Submitted for appellant Officer Nolan Rusk by his fictional appellate counsel.